

WITHOUT PREJUDICE

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June 27, 2025

To: Bowery at Southside Management and Weinstein Properties Team

Re: Apartment #2145, The Bowery at Southside, Fort Worth, TX 76104

OPPORTUNITY FOR AMICABLE RESOLUTION

I'm writing in good faith to request your assistance with a serious health and safety hazard in my unit. Professional testing has confirmed dangerous mold levels that require immediate attention. As a tenant who has consistently paid rent on time for the past 20 months, I'm hoping we can work together to resolve this situation promptly and professionally.

As someone with documented disabilities who requires reasonable accommodations, I'm hopeful that Weinstein Properties will demonstrate its commitment to ADA compliance and fair housing principles through a prompt, cooperative response to this health emergency.

CONFIRMED HAZARDOUS CONDITION

On June 22, 2025, BioTex (License #MAC1813) issued a professional mold assessment that revealed:

- **Dangerous Mold Types:** Laboratory testing confirmed elevated levels of:
 - Aspergillus/Penicillium
 - Chaetomium
 - Stachybotrys/Memnoniella (black mold)
- **Professional Remediation Required:** The assessment states "BioTex Inspections recommends that a licensed Mold Remediation Contractor be retained for the removal of the impacted materials."
- Elevated mold levels throughout the apartment, including bedroom areas

- The report explicitly declares 405 Crawford Street, Apt. 2145, Fort Worth, TX as **"unfit for human occupancy** until mold remediation of the residence/facility/structure (including all items/contents within) is performed in accordance with the Texas Mold Assessment and Remediation Administrative Rules."

These findings confirm what I first reported on August 29, 2024, October 7, 2024, and again on March 5, 2025. The complete assessment report is attached for your review.

Under Texas law, this constitutes a condition that "materially affects the physical health or safety of an ordinary tenant" as specified in Property Code §92.052(a)(3)(A), and even more significantly impacts my health given my documented medical vulnerabilities.

REQUEST FOR DOCUMENTATION:

Please provide all maintenance records for Apartment 2145 prior to my tenancy, including building leaks or water intrusion.

TEMPORARY HOUSING:

I am requesting immediate relocation assistance in the form of a furnished, mold-free, and medically appropriate temporary housing arrangement. This may include, but is not limited to, extended stay hotels, corporate housing, or short-term rentals (e.g., Airbnb, Furnished Finder), provided the environment supports my recovery, accommodates necessary medical care, and safely houses me, my two daughters, my service animals, and any caregivers or guests.

The temporary space must offer at minimum:

- Two separate room / sleeping areas
- Access to a full-size refrigerator and kitchen or kitchenette
- A clean, low-toxin environment that supports recovery from toxic mold exposure and related medical conditions

This request is narrowly tailored to avoid further medical harm and reduce the need for ongoing emergency treatment or inpatient care.

REMEDIES AND ACCOMMODATIONS

Please provide, **in writing within 7 days** of receipt (by **July 3, 2025**):

1. **Immediate Temporary Housing:** Alternative accommodation for three occupants and two dogs at The Nobleman Hotel across the street (two adjoining rooms with kitchenette) and pet accommodation at Doggie Diggs next door (\$85/night for two dogs sharing a crate), beginning immediately and lasting until the unit passes clearance testing. I am also open to discussing other relocation options.
2. **Licensed Mold Remediation:** Engagement of a Texas-licensed Mold Assessment Consultant to develop a protocol and oversee remediation, including proper containment, negative air pressure, and post-remediation clearance testing.
3. **Medical Expense Reimbursement:** Compensation for medical expenses reasonably related to mold exposure.
4. **Written Documentation:** Confirmation of the assigned vendor's name, license number, remediation plan, and timeline for completion.

Please note that this letter constitutes formal notice under Texas Property Code §92.056(b)(3) also being sent by certified mail, return receipt requested. The statutory timeline for response and remediation begins upon your receipt of this notice.

TIME-SENSITIVE CONSIDERATIONS

Two factors make this situation particularly urgent:

1. The Fort Worth Star Telegram reported that 800 residents were displaced by an apartment fire at The Cooper Apartments less than a mile from The Bowery on June 24, 2025. These residents are currently seeking temporary accommodations in our area, making hotel rooms increasingly scarce (article attached).
2. My next scheduled medical appointments are on July 2 and July 7, and my doctors have emphasized the importance of reducing my exposure before these evaluations to get accurate readings.

I'm concerned that without prompt action, suitable accommodations may become unavailable, and my health may deteriorate further.

LEGAL FRAMEWORK

While I hope we can resolve this matter cooperatively, I should note that this situation implicates several important legal frameworks:

Texas Property Code §92.052 and §92.056

- Requires landlords to remedy conditions materially affecting tenant health and safety
- Establishes a rebuttable presumption that seven days is a reasonable repair time
- Provides remedies including lease termination, repair and deduct, and judicial remedies
- This notice satisfies the formal notice requirements under these provisions

Americans with Disabilities Act (ADA) & Fair Housing Act

- My documented medical conditions qualify as disabilities requiring reasonable accommodation
- The request for temporary relocation constitutes a reasonable accommodation for my disabilities
- Housing providers must make reasonable accommodations when necessary to afford persons with disabilities equal opportunity to use and enjoy a dwelling
- Failure to provide reasonable accommodations may constitute disability discrimination

Texas Deceptive Trade Practices Act (DTPA)

- Prohibits misrepresentations about the characteristics or qualities of goods or services
- Protects consumers against failure to disclose information about goods or services
- Provides for economic damages, mental anguish damages, and potentially treble damages
- Continuing to represent the apartment as habitable despite known mold issues may constitute a DTPA violation
- This letter constitutes notice under §17.505 of the Texas Deceptive Trade Practices Act. Your actions violate §17.46(b)(5), §17.46(b)(7), and §17.50(a)(2) of the DTPA by:
 - Representing that goods or services have characteristics or benefits they do not have

- Representing that goods or services are of a particular standard or quality when they are of another
 - Breaching the implied warranty of habitability
 - Failing to disclose known material defects and health hazards, including the presence of mold and prior water intrusion, which you had a duty to disclose.
- This letter provides you with the opportunity to settle this matter within 60 days before I pursue all available legal remedies, including treble damages and attorney's fees under the DTPA.

If these conditions are not remedied within the specified timeframe, I will exercise my statutory rights, which may include terminating the lease, deduct-and-repair, and pursuing damages, court costs, and attorney's fees under §§ 92.056, 92.0561, and 92.0563, as well as potential claims under the ADA, Fair Housing Act, and DTPA.

STATUTORY NOTICES

This letter serves as formal notice under multiple legal frameworks:

1. Texas Property Code §92.056(b)(3): This written notice is being sent by certified mail, return receipt requested regarding conditions that materially affect my physical health and safety. As documented in the attached payment history, I am not delinquent in payment of rent at the time of this notice.
2. Texas Deceptive Trade Practices Act §17.505: This constitutes written notice under the DTPA for violations of §17.46(b)(5), §17.46(b)(7), and §17.50(a)(2) through:
 - a. Representing the apartment as habitable when it is professionally deemed "unfit for human occupancy"
 - b. Concealing pre-existing water damage by painting over it without proper remediation
 - c. Breaching the implied warranty of habitability from the beginning of the lease
 - d. Failing to disclose information about the property's condition that was known when I signed the lease

3. Americans with Disabilities Act and Fair Housing Act: This serves as a request for reasonable accommodation based on my documented disabilities that make me particularly vulnerable to mold exposure.

This letter provides you with the opportunity to resolve this matter within 60 days before I pursue all available legal remedies, including treble damages and attorney's fees under the DTPA.

CONCLUSION

I have been a responsible tenant throughout my tenancy, with consistent on-time rent payments and proper maintenance notifications. I'm simply requesting the accommodations necessary for my health and safety as provided by law.

If Weinstein Properties wishes to resolve this matter amicably, I am open to a good faith discussion. I appreciate your attention to this matter and look forward to your prompt response. I'm available to discuss this in person or by phone at your convenience.

Sincerely,

Katie Copeland
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Attachments:

1. BioTex Mold Assessment Report (6/22/25)
2. Moisture-meter readings & photos (6/10/25)
3. Witness statement – David Quiram (6/10/25)
4. Prior notice email (3/5/25)
5. Fort Worth Star Telegram article re: apartment fire displacement (6/24/25)
6. Nobleman Hotel and AirBnB accommodation options and pricing

NON-WAIVER STATEMENT:

This letter relates specifically to The Bowery at Southside and Weinstein Property and is without prejudice to separate claims against other parties responsible for mold-related illnesses.